

relinquishment of rights, and there was no contract between Plaintiff and Defendant. In short, Defendant owed no duty to Plaintiff.

Accordingly, the motion for new trial is denied.

Motion to Set Aside and Vacate Judgment and Enter a Different Judgment

The motion to set aside and vacate judgment and enter a different judgment is DENIED.

After a thorough review of the record the court finds its judgment does not rest on erroneous legal premises, Defendant's motion for summary judgment was not procedurally defective, and the evidence was sufficient to support granting the motion for summary judgment.

The evidence supports the finding that the revocation by Mr. Juarez was valid, there was no requirement by Defendant to notify Plaintiff that Mr. Juarez had revoked the relinquishment of rights, and there was no contract between Plaintiff and Defendant. In short, Defendant owed no duty to Plaintiff.

Accordingly, motion to set aside and vacate judgment and enter a different judgment is denied.

25CV-00873

Shauna Zaas, et al. vs General Motors, LLC. et al.

Motion for Attorney's Fees for Time Actually Expended and Reasonably Incurred

Plaintiff's motion for attorney's fees is GRANTED.

Attorney's fees are awarded in the amount of \$10,707.50.

Costs are awarded in the amount of \$2,611.16.

Plaintiff seeks to set the lodestar at \$20,220, inclusive of attorney's fees to review Defendant's opposition, draft a reply brief, and attend the hearing on this motion. Plaintiff also seeks costs in the amount of \$2,858.66.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) The court begins its assessment with a lodestar figure. Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Plaintiff's counsel claims hourly rates ranging from \$595 to \$450 for attorneys and \$250 for law clerk work. To support these rates, Plaintiff cites to the United States Attorney Fee Survey 2017-2018, and the Laffey Matrix. The Court finds the claimed hourly rates are not representative of the rates charged in the local Merced community for the same or similar work. Rather, the Court sets the hourly rate of counsel at \$350 / hour and the law clerk rate at \$125 / hour.

After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the Court finds the time billed for attorney hours is excessive and finds it reasonable to reduce the hours billed. The total attorney time of 30.2 hours is reduced by 4.5 hours to 25.7 hours. The Court finds the hours claimed by the law clerks to be reasonable.

This results in a lodestar set by the Court of \$10,707.50. This represents 25.7 hours at \$350 / hour and 13.7 hours at \$125 / hour.

Plaintiff also seeks a lodestar enhancement of 0.3.

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Serrano v. Priest* (Serrano III) (1977) 20 Cal.3d 25, 49.)

This matter was a straightforward lemon law action that was resolved early in litigation. As such, the court does not find that a lodestar enhancement is appropriate. Accordingly, the Court awards attorney fees in favor of Plaintiff in the amount of \$10,707.50.

Plaintiff's memorandum of costs seeks total costs in the amount of \$2,858.66. Defendant seeks to tax the costs for service of a notice of deposition to the dealership in this matter in the amount of \$75 and post-mediation costs of in the amount of \$172.50. The Court finds this appropriate and costs are taxed in the amount of \$247.50, awarding costs of \$2,611.16 to Plaintiff.

Plaintiff is awarded total attorney fees and costs in the amount of \$13,318.66 to be paid within thirty (30) days of this court's order.

26CV-02506 Laura Emery vs Monique Garza

Order Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing and temporary orders on Respondent has been filed with the court.
